

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, JULY 02, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**RESA MACKEY v. CITY OF VALLEJO
Case No. CL25-01569**

Demurrer to Complaint

TENTATIVE RULING:

CITY OF VALLEJO (Defendant or "CITY") demurs to the complaint filed by Plaintiff RESA MACKEY (Plaintiff or "MACKEY").

CITY's unopposed demurrer is GRANTED WITHOUT LEAVE TO AMEND.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Requests for Judicial Notice. Matters subject to judicial notice may support a demurrer. (Code Civ. Proc., § 430.30, subd. (a).) The court takes judicial notice of the existence of Plaintiff's government claim dated May 30 and June 4, 2024 and the claim

rejection dated July 9, 2024. (Evid. Code, § 452(c).); *Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 376.) See attachments to Complaint and Request for Judicial Notice (“RJN”) Exh. A. The court may take judicial notice of the contents of its own file.

Government Claims Act. Unless provided by statute, a public entity is not liable for an injury. (Gov. Code, § 815(a).) Tort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions. (*Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832.)

Under the Government Claims Act (a.k.a. the Tort Claims Act), claims for damages to personal property against public entities must be presented to the entity within six months of accrual of the injury. (Govt. Code, 911.2(a); *A.M. v. Ventura Unified School District* (2016) 3 Cal.App.5th 1252, 1257.) Thereafter, suit must be filed within six months of the public entity’s notice that the claim was rejected (Govt. Code § 945.6) or within two years from accrual of the cause of action if the public entity fails to send proper written notice of the rejection. (Govt. Code, § 945.6(a)(2).) When the public entity provides notice, the clock begins to run on the date notice of denial is personally delivered or deposited in the mail. (Govt. Code, § 945.6.)

The complaint in this action was not filed until February 19, 2025. Six months from July 9, 2024 was January 9, 2025. Plaintiff’s suit filed February 19, 2025 is time-barred.

Although the complaint alleges that Plaintiff is excused from complying with the claims act because “California allows 1 year from date of incident to sue responsible parties” that statement does not correctly reflect applicable law.

Discretionary Immunity Because the court finds Plaintiff’s suit is time-barred it does not reach Defendant’s additional argument on demurrer that CITY is immune from liability arising from a police pursuit. (See e.g. Veh. Code, § 17004.7; *Brumer v. City of Los Angeles* (1994) 24 Cal.App.4th 983, 987.)

Conclusion Defendant’s demurrer is SUSTAINED WITHOUT LEAVE TO AMEND. This suit shall be dismissed. CITY to prepare an order after hearing and judgment and to submit directly to court. The case management conference and any future scheduled dates are vacated.

IN THE MATTER OF CYNTHIA J CAMPBELL
Case No. CL25-10837

Petition for Court Approval of a Transfer of Structured Settlement Payment Rights

TENTATIVE RULING:

The petition is DENIED.

Petitioner seems to be conflating a petition to request approval of the sale of all or a portion of a structured settlement with a request to advance or cash out future payments on an annuity purchased as part of a structured settlement for her benefit.

Notably, it appears Petitioner has previously sold portions of her annuity. (See *In re Petition of Symetra Assigned Benefits Services* FCS034828; *Cynthia Campbell v. Symetra Assigned Benefits Services* FCS030497; *Cynthia Campbell v. Symetra Assigned Benefits Services* FCS032167.)

The court is unaware of any legal authority to compel an insurance company to advance payments on an annuity contract in which it agreed in exchange for purchase of the annuity to make specific periodic payouts over a specific period of time.

Petitioner may wish to seek legal advice.

MCNAMARA v. REVEILLE FARMS, ET AL.
Case No. CU24-02198

Motion to Deem Matters Admitted by Defendant RICHARD MATHIES

Tentative Ruling:

Plaintiff MCNAMARA's unopposed Motion to Deem Matters Admitted in REQUEST FOR ADMISSIONS (Set Two) by Defendant RICHARD MATHIES is GRANTED. Defendant RICHARD MATHIES shall be deemed to have admitted all propounded Requests for Admission (Set Two).

While the caption of Plaintiff's motion requests monetary sanctions, the body of Plaintiff's motion does not.

The proposed order lodged with the court will be processed forthwith.

EDEN v. AU ENERGY, LLC, ET AL.
Case No. CU24-04941

Motion for Entry of Consent Judgment
TENTATIVE RULING

Plaintiff EDEN's motion for approval of a consent judgment pursuant to Proposition 65 is GRANTED.

Under Proposition 65, "No person in the course of doing business shall knowingly and intentionally expose any individual to a chemical known to the state to cause cancer or reproductive toxicity without first giving clear and reasonable warning to such individual, except as provided in Section 25249.10." (Health and Safety Code § 25249.6)

A private person may bring an action to enforce Proposition 65 in the public interest after notice to public enforcement agencies. (Health and Safety Code § 25249.7(d).) Any settlement of such an action must be submitted to the court for review and approval to ensure protection of public interest and that the settlement is fair and reasonable. (Health and Safety Code § 25249.7(f)(4); *Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 46, 49.)

In considering the settlement, the court must also make all of the following findings under Health and Safety Code § 25249.7(f)(4):

(A) The warning that is required by the settlement complies with Proposition 65;

(B) The award of attorney's fees is reasonable under California law; and

(C) the penalty amount is reasonable based on the Health and Safety Code § 25249.7(b)(2) criteria.

Here, Plaintiff alleges that Defendant AU ENERGY, LLC. failed to provide requisite warning notices at two of its gas stations located in Solano County. This case settled, along with three other actions in other counties, encompassing a total of 12 or 120 gas stations owned by AU ENERGY, LLC.

Defendant has agreed to provide notices consistent with the safe harbor language established by the State of California. (See Title 27, CCR, §§ 25607.26, 25607.27.) Defendant agrees to pay a penalty of \$3,000 per gas station. Defendant agrees to pay Plaintiff \$15,000 inclusive of attorney's fees and costs. Costs were \$955.10, leaving an award of attorney's fees of \$14,044.90 which results in a lodestar hourly rate of \$369.60 based upon 38 hours expended.

The court finds the settlement is reasonable and meets each of the statutory criteria.

JEMERSON v. LIGHTHOUSE AT BRIDGEPORT OWNERS ASSN.
Case No. CU24-08429

Motion for Leave to File Amended Answer

TENTATIVE RULING

CRC 3.1324(a)(1) requires a party moving for leave to file an amended pleading to include a copy of the proposed amended pleading.

While the declaration filed in support of the motion purports to attach both a copy of the original answer and the proposed first amended answer, neither were actually attached to the motion papers filed with the court.

In addition, Plaintiff failed to include notice of the court's tentative ruling system as required by Local Rule 3.9(d).

This motion is DENIED WITHOUT PREJUDICE.

The parties should further meet and confer. Given the policy that a timely amendment to an operative pleading is generally allowed when it is not unreasonably delayed causing undue prejudice, the parties should consider stipulating to the filing of an amended answer.

NUNEZ v. FIRST CAL FOODS, LLC, dba DENNY'S
Case No. CU25-06124

Motion for Sanctions under CCP Section 128.7

TENTATIVE RULING

Defendant's motion for sanctions under CCP Section 128.7 is DENIED.

It appears that plaintiff did not work for defendant for at least twelve months before she went on maternity leave, and therefore, she was not an "eligible employee" who was entitled to have her employment position held for her for four months while she was on leave under the California Family Rights Act ("CFRA"; Govt. Code §§ 12945.1-12945.2; 2 CCR § 11046.) Further, Plaintiff did not seek to return within four months after initiating leave due to pregnancy, childbirth or related medical condition. (Govt. Code § 12945 ("PDLL").)

But, the complaint includes other allegations not dependent upon CFRA and PDLL. For example, in addition to the wage and hour claims, plaintiff alleges defendant failed to reasonably accommodate her when she complained of pain due to standing for extended periods while pregnant.

Sanctions are proper only if the "pleading, motion or paper" is without merit. The fact that one of the arguments is frivolous does not justify sanctions. (See e.g. The Rutter Group, California Practice Guide, Civil Procedure Before Trial §§ 9:1159.1 and 9:1179; see also *Golden Eagle Distributing Corp. v. Burroughs Corp* (9th Cir. 1986) 801 F2d 1531, 1540 [interpreting FRCP 11].)

LESLEY SYRETT v. LUXOTTICA OF AMERICA, INC. and LORRAINE CHAMPLAIN
Case No. CU25-06158

Defendants' Motion to Compel Arbitration

TENTATIVE RULING

The motion of Defendants LUXOTTICA OF AMERICA, INC. ("LUXOTTICA") and LORRAINE CHAMPLAIN to compel arbitration of Plaintiff LESLEY SYRETT's complaint alleging violations of the Fair Employment and Housing Act and wage and hour law is GRANTED.

The court exercises its discretion to consider Plaintiff's opposition despite it being filed a day late.

Unconscionability. Though California and federal law alike favor arbitration, general contract defenses such as unconscionability may be applied to invalidate arbitration agreements. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125 (*Kho*)). A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree ("procedural unconscionability") and the contract contains terms that are unreasonably favorable to the other party ("substantive unconscionability"). (*Ibid.*) Both forms of unconscionability must be present for a contract to be found unconscionable overall, but a high degree of one form of unconscionability will reduce the amount of the other form that must be present in order to support an ultimate finding of unconscionability. (*Id.* at pp. 125-126.) The ultimate issue is whether a contract is sufficiently unfair in light of all of the circumstances that a court should refuse enforcement. (*Id.* at p. 126.) A party asserting unconscionability bears the burden of proof. (*Ibid.*)

Procedural unconscionability analysis begins with determining whether a contract is one of adhesion. (*Kho, supra*, 8 Cal.5th at p. 126.) A contract of adhesion is standardized, on a preprinted form, and presented on a "take it or leave it" basis. (*Ibid.*) After determining that a contract is one of adhesion a court must analyze whether the circumstances of the contract's formation created such oppression or surprise that further inspection of fairness should be done. (*Kho* at p. 126.) "Oppression" here refers to a lack of negotiation and meaningful choice; "surprise" to hiding contractual provisions within prolix printed forms. (*Ibid.*)

Analysis of substantive unconscionability is a matter of seeking out terms that are overly harsh, unduly oppressive, or unfairly one-sided. (*Kho, supra*, 8 Cal.5th at pp. 129-130.) Unconscionable terms impair the integrity of the bargaining process, attempt to impermissibly alter fundamental legal duties, or otherwise contravene public interests and policies. (*Id.* at p. 130.) They might include, without limitation, fine-print terms, unreasonably or unexpectedly harsh terms regarding the central aspects of the transaction, or terms that undermine the non-drafting party's reasonable expectations. (*Ibid.*) Again, because procedural and substantive unconscionability are evaluated on a sliding scale, terms that might not be unconscionable in the abstract could be so if imposed by an oppressive procedure. (*Ibid.*)

There is some procedural unconscionability here as the arbitration agreement was presented to Plaintiff as a condition of continued employment with no meaningful opportunity for her to negotiate. (Knight Dec. at ¶¶ 12-14.) However, the court finds there is minimal substantive unconscionability and the arbitration agreement is not unconscionable as a whole. The arbitration agreement's terms permitting either party access to provisional injunctive relief are akin to terms the California Supreme Court approved in *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1241 as essentially stating existing law permitting provisional relief as expressed in Code of Civil Procedure

section 1281.8 and do not otherwise favor or give preference to an employer's claims. The terms in the nondisclosure agreement likewise permit LUXOTTICA only to obtain provisional injunctive relief "in aid of, or to preserve, an arbitrator's jurisdiction to address the parties' dispute under the Dispute Resolution Agreement." (Knight Dec. at ¶ 12, Exhibit A.) Even read in conjunction, the agreements do not permit LUXOTTICA alone to escape arbitration and so are not unconscionable.

Delegation of Enforceability Decision. After their moving papers engaged in an extensive analysis of unconscionability, Defendants raised the argument of delegation to the arbitrator in their reply, citing *Rent-A-Center, W., Inc. v. Jackson* (2010) 561 U.S. 63, 71 (*Rent-A-Center*). Plaintiff's opposition challenges the arbitration agreement as a whole, contending that it is unconscionable for lack of mutuality in its terms, and does not specifically challenge the delegation provision. The court declines to consider new argument raised on reply to which Plaintiff was not afforded a chance to respond. (*Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 228.) The delegation argument does more than respond to Plaintiff's opposition as it raises a new issue. (See also *United Grand Corp. v. Malibu Hillbillies, LLC*. (2019) 36 Cal.App.5th 142, citing *American Indian Model Schools v. Oakland Unified School Dist.* (2014) 227 Cal.App.4th 258, 275.)

Conclusion. Defendants' motion to compel arbitration is GRANTED. This matter is ordered stayed pending the outcome of arbitration. Arbitration review is scheduled for **June 3, 2027 at 8:30 a.m.** Defendant shall take the lead in preparing a joint CMC statement for the arbitration review date to be filed 15 days prior.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrmcRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002